



February 12, 2026

ENGROSSED

SENATE BILL No. 204

DIGEST OF SB 204 (Updated February 11, 2026 1:23 pm - DI 110)

Citations Affected: IC 20-28; IC 21-15; IC 21-18; IC 21-30; IC 21-33; IC 21-41; IC 21-42; IC 21-44; noncode.

Synopsis: Various education matters. Provides that an individual who has obtained a license to teach in a charter school may be eligible to obtain an initial practitioner professional educator license under certain conditions. Removes a requirement that an individual must hold a bachelor's degree in science, technology, engineering, or mathematics as a component of certain pathways to receive an initial practitioner license. Provides that academic needs based salary increases may not: (1) apply to all eligible teachers in a bargaining unit uniformly; or (2) (Continued next page)

Effective: July 1, 2026; July 1, 2027.

Deery, Goode

(HOUSE SPONSOR — SMITH H)

January 8, 2026, read first time and referred to Committee on Education and Career Development.

January 15, 2026, amended, reported favorably — Do Pass; reassigned to Committee on Appropriations.

January 22, 2026, amended, reported favorably — Do Pass.

January 26, 2026, read second time, ordered engrossed. Engrossed.

January 27, 2026, read third time, passed. Yeas 33, nays 12.

HOUSE ACTION

January 29, 2026, read first time and referred to Committee on Education.

February 12, 2026, amended, reported — Do Pass. Referred to Committee on Ways and Means pursuant to Rule 126.3.

ES 204—LS 6843/DI 143



be based on certain other factors. Repeals the: (1) state educational institution (institution) annual report to the legislative council (council) and commission for higher education (commission) concerning financial aid; (2) commission report to the general assembly concerning certain institution information; (3) student athlete cardiac arrest provisions; and (4) Ivy Tech Community College report to the budget committee concerning campus information. Expires certain physical facilities reporting requirements on June 30, 2029. Provides that a state educational institution that has been denied approval to continue a degree program may: (1) permit students to enroll in the degree program until June 1 of the year following the denial; and (2) provide students enrolled in the degree program with the opportunity to finish their degree prior to the degree program's closure. Requires the commission to submit an annual report concerning degree program closures to the general assembly. Changes the reporting of disclosable gifts to January 31 and July 31 of a given year (current law requires disclosure on January 1 and July 1 of a given year). Changes certain amounts concerning construction, land purchases, and repair and rehabilitation by an institution to \$3,000,000. Voids a provision in the Indiana Administrative Code. Requires each institution to submit a report annually to the budget committee and the commission for higher education listing certain capital projects for the immediately preceding full calendar year that did not receive review by the commission. Specifies the contents of the report. Provides that a student enrolled in a health profession education program may not be required to receive an immunization as a condition of: (1) participating in; or (2) obtaining; clinical training or clinical experience required by the program if a parent of the student or student objects on religious grounds. Adds requirements regarding the principles of the core transfer library.



February 12, 2026

Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

ENGROSSED SENATE BILL No. 204

A BILL FOR AN ACT to amend the Indiana Code concerning education.

Be it enacted by the General Assembly of the State of Indiana:

1 SECTION 1. IC 20-28-5-16, AS AMENDED BY P.L.205-2013,
2 SECTION 253, IS AMENDED TO READ AS FOLLOWS
3 [EFFECTIVE JULY 1, 2026]: Sec. 16. (a) The department shall
4 establish a program under which an individual may obtain a license
5 that allows the individual to teach in a charter school if the individual:
6 (1) wishes to teach in a charter school in Indiana; and
7 (2) satisfies either of the following requirements:
8 (A) The individual holds at least a bachelor's degree with a
9 grade point average of at least 3.0 on a 4.0 point scale from an
10 accredited postsecondary institution in the content or a related
11 area in which the individual wishes to teach.
12 (B) The individual holds at least a bachelor's degree and proof
13 that the individual has passed the state approved content area
14 examination in the subject area that the individual intends to
15 teach.

ES 204—LS 6843/DI 143



(b) The program established under subsection (a) must allow the individual to teach in a charter school while the individual is in the process of obtaining the license.

(c) **Subject to subsection (d), if an individual described in subsection (a) demonstrates effectiveness as a teacher, as determined by the applicable charter school leader, for not less than two (2) consecutive years, the individual shall be eligible to obtain an initial practitioner professional educator license for the content area in which the individual has taught.**

(d) **An individual eligible to obtain an initial practitioner professional educator license under subsection (c) must:**

(1) demonstrate proficiency through a written examination, as described in section 12(b)(2) of this chapter, in the knowledge area in which the individual has taught and is seeking an initial practitioner professional educator license; and

(2) complete the training described in section 12.3 of this chapter.

SECTION 2. IC 20-28-5-16.5, AS ADDED BY P.L.194-2025, SECTION 2, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 16.5. (a) **Except as provided in subsection (c),** the department shall grant an initial practitioner license to an individual who meets the following requirements:

(1) The individual holds a bachelor's degree with a grade point average of at least 2.5 on a 4.0 scale from an accredited postsecondary educational institution. ~~with a major in any combination of the following:~~

~~(A) Science;~~

~~(B) Technology;~~

~~(C) Engineering;~~

~~(D) Mathematics;~~

(2) The individual successfully completes a total of at least nine (9) academic credits in courses that include instruction on the following:

(A) High impact practices in:

(i) lesson planning;

(ii) instructional design;

(iii) instructional activities;

(iv) integrating learning modalities; and

(v) **if applicable**, developing laboratory experiments.

(B) The use of:

(i) digital media;



- 1 (ii) learning management software; and
- 2 (iii) technology to maximize learning.
- 3 (C) Teaching:
- 4 (i) inductive and deductive reasoning;
- 5 (ii) metacognition;
- 6 (iii) problem framing;
- 7 (iv) interpreting results; and
- 8 (v) data based decision making.
- 9 (D) Best practices to evaluate student learning through:
- 10 (i) diagnostic assessment;
- 11 (ii) direct and indirect assessment; and
- 12 (iii) formative and summative assessment.
- 13 (E) Creating feedback loops.
- 14 (F) Fostering engagement and using peer to peer learning and
- 15 other small group strategies.
- 16 (G) Providing constructive feedback and preventing disruptive
- 17 behavior.
- 18 (H) Early intervention strategies and professional standards.
- 19 (I) Teaching students with disabilities.
- 20 (3) The individual demonstrates proficiency through a written
- 21 examination in the knowledge of the areas in which the individual
- 22 is required to have a license to teach, as described in section
- 23 12(b)(2) of this chapter.
- 24 (4) The individual has completed the training described in section
- 25 12.3 of this chapter.
- 26 (5) The individual participates in one (1) or more of the following,
- 27 as determined by the department:
- 28 (A) Job shadowing.
- 29 (B) Field experiences.
- 30 (C) Teaching cooperatives.
- 31 (D) Full-term student teaching.
- 32 (b) An individual who receives an initial practitioner license under
- 33 this section:
- 34 (1) may only teach in any combination of grades 5, 6, 7, 8, 9, 10,
- 35 11, or 12, as determined by the department;
- 36 (2) shall be treated in the same manner as an individual who
- 37 receives an initial practitioner license after completing a
- 38 traditional teacher preparation program; and
- 39 (3) must be treated in the same manner as a traditional teacher
- 40 preparation program graduate during the transition from an initial
- 41 practitioner license to a practitioner license.
- 42 (c) **The department may not grant an initial practitioner license**



under this section to teach special education.

(e) (d) The state board may adopt rules under IC 4-22-2 to administer this section.

SECTION 3. IC 20-28-9-1.5, AS AMENDED BY P.L.214-2025, SECTION 123, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2027]: Sec. 1.5. (a) This subsection governs salary increases for a teacher employed by a school corporation. Compensation attributable to additional degrees or graduate credits earned before the effective date of a local compensation plan created under this chapter before July 1, 2015, shall continue for school years beginning after June 30, 2015. Compensation attributable to additional degrees for which a teacher has started course work before July 1, 2011, and completed course work before September 2, 2014, shall also continue for school years beginning after June 30, 2015. For school years beginning after June 30, 2022, a school corporation may provide a supplemental payment to a teacher in excess of the salary specified in the school corporation's compensation plan when doing so is in the best interest of students. A supplement provided under this subsection is not subject to collective bargaining and, under IC 20-29-6-3(d), a school corporation may exclude, for this purpose, a portion of the revenue available for bargaining from education fund revenues included in IC 20-29-2-6. Such a supplement is in addition to any increase permitted under subsection (b).

(b) Subject to subsection (e), increases or increments in a local salary range must be based upon a combination of the following factors:

(1) A combination of the following factors taken together may account for not more than fifty percent (50%) of the calculation used to determine a teacher's increase or increment:

(A) The number of years of a teacher's experience.

(B) The possession of either:

(i) additional content area degrees beyond the requirements for employment; or

(ii) additional content area degrees and credit hours beyond the requirements for employment, if required under an agreement bargained under IC 20-29.

(2) The results of an evaluation conducted under IC 20-28-11.5.

(3) The assignment of instructional leadership roles, including the responsibility for conducting evaluations under IC 20-28-11.5.

(4) The academic needs of students in the school corporation, including employment in a high need area such as those identified under IC 20-29-3-15(b)(27). This factor may not:



- 1 (A) account for less than ten percent (10%) of the calculation
 2 used to determine a teacher's increase or increment;
 3 (B) **apply to all eligible teachers in a bargaining unit**
 4 **uniformly; or**
 5 (C) **be based on any other factor under this subsection.**
 6 (c) To provide greater flexibility and options, a school corporation
 7 may further differentiate the amount of salary increases or increments
 8 determined for teachers. A school corporation shall base a
 9 differentiated amount under this subsection on reasons the school
 10 corporation determines are appropriate, which may include the:
 11 (1) subject or subjects taught by a given teacher;
 12 (2) importance of retaining a given teacher at the school
 13 corporation;
 14 (3) need to attract an individual with specific qualifications to fill
 15 a teaching vacancy; and
 16 (4) offering of a new program or class.
 17 (d) A school corporation may provide differentiated increases or
 18 increments under subsection (b), and in excess of the percentage
 19 specified in subsection (b)(1), in order to:
 20 (1) reduce the gap between the school corporation's minimum
 21 teacher salary and the average of the school corporation's
 22 minimum and maximum teacher salaries; or
 23 (2) allow teachers currently employed by the school corporation
 24 to receive a salary adjusted in comparison to starting base salaries
 25 of new teachers.
 26 (e) A school corporation shall differentiate the amount of salary
 27 increases or increments for teachers who possess a required literacy
 28 endorsement under IC 20-28-5-19.7.
 29 (f) The Indiana education employment relations board established
 30 in IC 20-29-3-1 shall publish a model compensation plan with a model
 31 salary range that a school corporation may adopt.
 32 (g) Each school corporation shall submit its local compensation plan
 33 to the Indiana education employment relations board. A local
 34 compensation plan must specify the range for teacher salaries. The
 35 Indiana education employment relations board shall publish the local
 36 compensation plans on the Indiana education employment relations
 37 board's website.
 38 (h) The Indiana education employment relations board shall review
 39 a compensation plan for compliance with this section as part of its
 40 review under IC 20-29-6-6.1. The Indiana education employment
 41 relations board has jurisdiction to determine compliance of a
 42 compensation plan submitted under this section.



(i) This chapter may not be construed to require or allow a school corporation to decrease the salary of any teacher below the salary the teacher was earning on or before July 1, 2015, if that decrease would be made solely to conform to the new compensation plan.

(j) After June 30, 2011, all rights, duties, or obligations established under IC 20-28-9-1 before its repeal are considered rights, duties, or obligations under this section.

(k) An employment agreement described in IC 20-28-6-7.3 between an adjunct teacher and a school corporation is not subject to this section.

SECTION 4. IC 21-15-2-4 IS REPEALED [EFFECTIVE JULY 1, 2026]. ~~Sec. 4: (a) Each state educational institution shall submit a report annually to the legislative council and the commission for higher education that includes the amount of need based financial aid and merit based financial aid available to students from all sources:~~

~~(b) A report submitted to the legislative council under this section must be in an electronic format under IC 5-14-6.~~

SECTION 5. IC 21-18-6-9.5, AS ADDED BY P.L.213-2025, SECTION 246, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 9.5. (a) As used in this section, "physical facilities" refers to space assigned to departments and organizational units of a state educational institution, including space assigned to departments and organizational units that have functions related to instruction, research, public service, academic support, student services, institutional support, operation and maintenance of physical facilities, auxiliary enterprises, independent operations or noninstitutional activities, hospitals, and residential activities.

(b) Not later than July 1, 2026, and not later than each July 1 thereafter, the commission shall prepare and submit to the legislative council and to the budget committee a report that examines the utilization of physical facilities primarily used for instruction at each state educational institution. The report must include at least the:

(1) number of classroom instructional spaces, instructional laboratory spaces, and combined classroom and instructional laboratory spaces in each physical facility; and

(2) utilization of classroom instructional spaces, instructional laboratory spaces, and combined classroom and instructional laboratory spaces in each physical facility;

as defined by the commission.

(c) In compiling the information for the report required by this section, the commission shall consider:

(1) characteristics of the student body of a state educational



institution, such as serving part-time students, commuter students, and working adults;

(2) the types of programs provided, and associated necessary instructional space, by a state educational institution; and

(3) information about physical facilities that is collected by the commission in support of the commission's recommendations concerning capital as described in IC 21-18-9-1.

(d) A state educational institution shall provide any information required by the commission that is necessary to complete the report required by this section in the form and manner required by the commission.

(e) A report submitted to the legislative council under this section must be in an electronic format under IC 5-14-6.

(f) This section expires June 30, 2029.

SECTION 6. IC 21-18-9-9 IS REPEALED [EFFECTIVE JULY 1, 2026]. Sec. 9: (a) In collaboration with each state educational institution's institutional research or strategic planning department, the commission shall develop an annual report to the general assembly that includes the following information:

(1) Faculty activities related to the mission of the state educational institution, including teaching, course grading practices, research, scholarship, outreach, and professional services.

(2) Average and median faculty and administrator salaries.

(3) Median grade point averages for all students for the fall and spring semesters.

(4) Median grade point averages for all graduating seniors.

(5) Other information the commission considers necessary.

The information in the report must include undergraduate student information and faculty data by academic department, college, or university.

(b) A state educational institution shall provide the information set forth in subsection (a) in the form required by the commission.

(c) The report to the general assembly under subsection (a) must be in an electronic format under IC 5-14-6.

SECTION 7. IC 21-18-9-10.7, AS ADDED BY P.L.213-2025, SECTION 248, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2027]: Sec. 10.7. (a) For each state educational institution degree program, if the:

(1) average number of students who graduate over the immediately preceding three (3) years is fewer than:

(A) ten (10) students for a particular associate degree program;



- 1 (B) fifteen (15) students for a particular bachelor's degree
 2 program;
 3 (C) seven (7) students for a particular master's degree
 4 program;
 5 (D) three (3) students for a particular education specialist
 6 program; or
 7 (E) three (3) students for a particular doctorate degree
 8 program; and
 9 (2) state educational institution would like to continue a degree
 10 program described in subdivision (1);
 11 the state educational institution must request approval from the
 12 commission to continue the degree program.
 13 (b) **Subject to subsection (c)**, if the commission does not grant
 14 approval under subsection (a), the state educational institution must
 15 eliminate:
 16 (1) the degree program; and
 17 (2) any costs associated with the degree program.
 18 **(c) A state educational institution that has been denied approval**
 19 **under subsection (a) may:**
 20 **(1) permit students to enroll in the degree program until June**
 21 **1 of the year following the commission's denial; and**
 22 **(2) provide students enrolled in the degree program with the**
 23 **opportunity to finish their degree prior to the degree**
 24 **program's closure under subsection (b).**
 25 **(d) The commission shall prepare an annual report concerning**
 26 **the number of degree programs that were denied approval under**
 27 **subsection (a). The report described in this subsection must be**
 28 **submitted, in an electronic format under IC 5-14-6, to the general**
 29 **assembly not later than December 1 of each year.**
 30 SECTION 8. IC 21-18-13 IS REPEALED [EFFECTIVE JULY 1,
 31 2026]. (Student Athletes: Sudden Cardiac Arrest).
 32 SECTION 9. IC 21-30-7-10, AS ADDED BY P.L.142-2024,
 33 SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 34 JULY 1, 2026]: Sec. 10. (a) A state educational institution shall
 35 disclose to the commission any gift of any value received directly or
 36 indirectly from any foreign source located in a foreign adversary as
 37 follows:
 38 (1) For a disclosable gift received after December 31, 2020, and
 39 before July 1, 2024, not later than September 1, 2024.
 40 (2) For a disclosable gift received after June 30, 2024, biannually
 41 on ~~January 1~~ **January 31** and ~~July 1~~ **July 31** of each subsequent
 42 year.



(b) A gift received from a foreign source through an intermediary or affiliate organization is considered an indirect gift to a state educational institution and is subject to the disclosure required by subsection (a).

SECTION 10. IC 21-33-3-5, AS AMENDED BY P.L.143-2014, SECTION 7, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 5. (a) Subject to this section, in addition to projects authorized by the general assembly, the board of trustees of a state educational institution may engage in a project to:

(1) construct buildings or facilities of a cost greater than ~~two~~ **three** million dollars ~~(\$2,000,000); (\$3,000,000);~~ or

(2) purchase or lease-purchase land, buildings, or facilities the principal value of which exceeds ~~two~~ **three** million dollars ~~(\$2,000,000); (\$3,000,000);~~

only if there are funds available for the project, the project meets any of the applicable conditions, and the project is reviewed by the commission for higher education and approved by the governor upon recommendation of the budget agency. The review by the commission for higher education must be completed not later than ninety (90) days after the project is submitted for review.

(b) If:

(1) any part of the cost of a project described in subsection (a) is paid by state appropriated funds or by mandatory student fees assessed all students for the project; and

(2) the project is to:

(A) construct new buildings or facilities of a cost greater than ~~two~~ **three** million dollars ~~(\$2,000,000); (\$3,000,000);~~ or

(B) purchase or lease-purchase land, buildings, or facilities the principal value of which exceeds ~~two~~ **three** million dollars ~~(\$2,000,000); (\$3,000,000);~~

the project must also be approved by the general assembly.

(c) This section does not limit the board of trustees in supplementing a project approved by the general assembly from gifts or other available funds so long as approval for the expansion of the project is given by the governor on review by the commission for higher education and recommendation of the budget agency.

(d) The review and approval requirements of this section do not apply to a project to:

(1) construct buildings or facilities; or

(2) purchase or lease-purchase land, buildings, or facilities;

if the project involves the expansion or improvement of housing for students undertaken entirely by a fraternity or sorority at the state educational institution.



SECTION 11. IC 21-33-3-6, AS AMENDED BY P.L.143-2014, SECTION 8, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 6. (a) Subject to subsection (b), in addition to projects authorized by the general assembly, the board of trustees of a state educational institution may engage in a repair and rehabilitation project for which:

(1) the cost of the project exceeds ~~two~~ **three** million dollars ~~(\$2,000,000); (\$3,000,000);~~ and

(2) any part of the cost of the project is paid by state appropriated funds or by mandatory student fees assessed all students for the project;

only if the project is reviewed by the commission for higher education and approved by the governor, on recommendation of the budget agency. The review by the commission for higher education must be completed not later than ninety (90) days after the project is submitted for review.

(b) If no part of the cost of a repair and rehabilitation project is paid by state appropriated funds or by mandatory student fees assessed all students for the project, the review and approval requirements of this section apply only if the project exceeds ~~two~~ **three** million dollars ~~(\$2,000,000); (\$3,000,000).~~

SECTION 12. IC 21-33-3-11 IS ADDED TO THE INDIANA CODE AS A **NEW** SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 11. Each state educational institution shall submit a report by April 1 of each year to the budget committee and the commission for higher education listing each capital project of the state educational institution for the immediately preceding full calendar year:**

(1) the cost of which is between two million dollars (\$2,000,000) and three millions dollars (\$3,000,000); and

(2) that did not receive review by the commission for higher education under this chapter.

The report shall include for each capital project the location, cost, and funding source or sources of the capital project as well as any additional information required by the commission for higher education.

SECTION 13. IC 21-41-5-15 IS REPEALED [EFFECTIVE JULY 1, 2026]. ~~Sec. 15: Before November 1, 2016, and each November 1 thereafter, Ivy Tech Community College shall provide the budget committee the following information for each of Ivy Tech Community College's owned or operated campus locations or sites that offer ongoing academic programs and services:~~



(1) ~~The number of students enrolled.~~

(2) ~~The amount of square feet of each building.~~

(3) ~~The operating or overhead costs associated with the campus location or site.~~

SECTION 14. IC 21-42-5-4, AS AMENDED BY P.L.120-2013, SECTION 5, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 4. The core transfer library shall be developed in accordance with the following principles:

(1) Each course in the core transfer library must transfer in and apply toward meeting degree requirements in the same way as the receiving state educational institution's equivalent course.

(2) Courses in the core transfer library must draw from the liberal arts and introductory or foundational courses in technical, professional, and occupational fields that are part of the single articulation pathways established under IC 21-42-6-4.

(3) At least seventy (70) courses must be identified for inclusion in the core transfer library. The identified courses must emphasize the courses most frequently taken by undergraduates.

(4) With respect to core transfer library courses being transferred from a state educational institution to Indiana University or Purdue University, Indiana University and Purdue University must identify transfer equivalents so that a course accepted by one (1) regional campus is accepted by all other regional campuses that offer the same transfer equivalent course.

(5) Within the Indiana University system and Purdue University system, equivalent courses, including courses with the same course number and title, must count in the same way at all campuses within the system where the course is offered.

(6) A state educational institution shall award course credit for a satisfactory score (as defined in IC 20-36-1-4) on an advanced placement examination in which the advanced placement examination corresponds to the state educational institution's course in the core transfer library.

(7) With respect to course credit awarded by a state educational institution for a satisfactory score (as defined in IC 20-36-1-4) on an advanced placement examination that corresponds to the state educational institution's course on the core transfer library, a receiving state educational institution must transfer and apply course credit in alignment with the receiving state educational institution's corresponding course in the core transfer library or as elective credit if no corresponding course is offered in the core transfer library.



SECTION 15. IC 21-44-8 IS ADDED TO THE INDIANA CODE AS A NEW CHAPTER TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]:

Chapter 8. Health Profession Education Program

Sec. 1. This chapter does not apply to a contract entered into or renewed before July 1, 2026.

Sec. 2. As used in this chapter, "health profession education program" means an education program that:

- (1) is designed to prepare a student for a career in a health profession regulated by an entity described in IC 25-0.5-11; and
- (2) requires a student to complete clinical training or clinical experience at an offsite facility.

Sec. 3. As used in this chapter, "immunization" means the treatment of an individual with a vaccine to produce immunity.

Sec. 4. As used in this chapter, "student" means a student enrolled in a health profession education program.

Sec. 5. A student may not be required to receive an immunization as a condition of:

- (1) participating in; or
- (2) obtaining;

clinical training or clinical experience required by a health profession education program if a parent of the student, if the student is an unemancipated minor, or a student, if the student is an adult or emancipated minor, objects on religious grounds.

SECTION 16. [EFFECTIVE JULY 1, 2026] (a) 25 IAC 5-6-3(b) is void. The publisher of the Indiana Administrative Code and Indiana Register shall remove this subsection from the Indiana Administrative Code.

(b) This SECTION expires July 1, 2027.

SECTION 17. An emergency is declared for this act.



COMMITTEE REPORT

Mr. President: The Senate Committee on Education and Career Development, to which was referred Senate Bill No. 204, has had the same under consideration and begs leave to report the same back to the Senate with the recommendation that said bill be AMENDED as follows:

Page 1, delete lines 1 through 15, begin a new paragraph and insert:
 "SECTION 1. IC 20-28-3-1, AS AMENDED BY P.L.190-2025, SECTION 3, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE UPON PASSAGE]: Sec. 1. (a) As used in this section, "teacher candidate" means an individual recommended for an initial teaching license from a teacher preparation program located in Indiana.

(b) As used in this section, "teacher preparation program" includes, but is not limited to, the following:

- (1) A teacher education school or department.
- (2) A transition to teaching program under IC 20-28-4.
- (3) Any other entity approved by the department to offer a course of study leading to an initial teaching license.

(c) The department shall:

- (1) arrange a statewide system of professional instruction for teacher education;
- (2) accredit and review teacher preparation programs that comply with the rules of the department;
- (3) approve content area licensure programs for particular kinds of teachers in accredited teacher preparation programs; and
- (4) specify the types of licenses for individuals who complete programs of approved courses.

(d) The department shall work with teacher preparation programs to develop a system of teacher education that ensures individuals who complete teacher preparation programs are able to meet the highest professional standards.

(e) Before July 1, 2015, the department shall establish standards for the continuous improvement of program processes and the performance of individuals who complete teacher preparation programs. The state board shall adopt rules containing the standards not later than two hundred seventy (270) days after the department finishes the standards.

(f) The standards established under subsection (e) must include benchmarks for performance, including test score data for each teacher preparation entity on content area licensure tests and test score data for each teacher preparation entity on pedagogy licensure tests.

(g) Each teacher preparation program shall annually report the



program's performance on the standards and benchmarks established under this section to the department. The department shall make the information reported under this subsection available to the public on the department's website. Each teacher preparation program shall make the information reported under this subsection available to the public on the teacher preparation program's website. In addition to reporting performance, each teacher preparation program must report to the department the following:

- (1) The attrition, retention, and completion rates of teacher candidates for the previous three (3) calendar years. The teacher preparation program must also provide underlying data, as determined by the department, used as part of calculating the teacher preparation program's retention rates.
- (2) The number of teacher candidates in each content area who complete the teacher preparation program during the year, disaggregated by ranges of cumulative grade point averages.
- (3) The number of teacher candidates in each content area who, during the year:
 - (A) do not pass a content area licensure examination; and
 - (B) do not retake the content area licensure examination.

(h) In making information available to the public on the department's website, the department shall include in the report under subsection (g), in addition to the matrix ratings described in subsection (i), the following information:

- (1) Average scaled or standard scores of teacher candidates who complete teacher preparation programs on basic skills, content area, and pedagogy licensure examinations.
- (2) The average number of times teacher candidates who complete a teacher preparation program take each licensing test before receiving a passing score and the percentage of teacher candidates who receive a passing score on each licensing test on the teacher candidates' first attempts.

(i) Not later than July 30, 2016, the department and the commission for higher education, in conjunction with the state board, the Independent Colleges of Indiana, Inc., and teacher preparation programs, shall establish a matrix rating system for teacher preparation programs based on the performance of the programs as demonstrated by the data collected under subsections (g) and (h). The matrix rating system must be based on data collected for teachers who initially receive their teaching license during the previous three (3) years. The department shall make the matrix ratings available to the public on the department's website.



(j) Each teacher preparation program shall report to the department, in a manner prescribed by the department, the teacher preparation program's admission practices, in accordance with:

- (1) the Council for the Accreditation of Educator Preparation standards, for teacher preparation programs accredited by the Council for the Accreditation of Educator Preparation;
- (2) rigorous academic entry requirements for admission into a teacher preparatory program that are equivalent to the minimum academic requirements determined by the Council for the Accreditation of Educator Preparation, for teacher preparation programs that are not accredited by the Council for the Accreditation of Educator Preparation; ~~or~~
- (3) the Association for Advancing Quality in Educator Preparation standards, for teacher preparation programs accredited by the Association for Advancing Quality in Educator Preparation; **or**
- (4) the department's admission standards for teacher preparation programs accredited by the department.**

The department shall include information reported to the department on the department's website.

(k) Not later than July 30, 2016, the department and the commission for higher education, in conjunction with the state board, the Independent Colleges of Indiana, Inc., and teacher preparation programs, shall establish a minimum rating under the matrix rating system established under subsection (i) that teacher preparation programs must achieve to avoid referral under subsection (l).

(l) Not later than July 1 of each year, the department shall submit a list of teacher preparation programs that do not meet the minimum rating established under subsection (k) or the requirements of section 3.1 or 3.2 of this chapter to the commission for higher education and the Independent Colleges of Indiana, Inc. for one (1) of the following actions:

- (1) In the case of a state educational institution, the commission for higher education shall place the teacher preparation program on an improvement plan with clear performance goals and a designated period in which the performance goals must be achieved.
- (2) In the case of a proprietary postsecondary educational institution, the commission for higher education shall recommend to the teacher preparation program an improvement plan with clear performance goals and a designated period in which the performance goals should be achieved.



(3) In the case of a nonprofit college or university, the Independent Colleges of Indiana, Inc., shall coordinate a peer review process to make recommendations to the peer institution in achieving the department's performance metrics.

- (m) The department shall approve at least two (2) accreditors that:
- (1) accredit teacher preparation programs; and
 - (2) are recognized by the Council for Higher Education Accreditation;

to accredit teacher preparation programs for use in Indiana. **The department may also serve as an accreditor in addition to the two (2) accreditors approved under this subsection.**

(n) Not later than December 31, 2024, the department and the commission for higher education, in conjunction with the state board, shall partner with teacher preparation programs to receive an outside evaluation by a nationally recognized nonprofit, nonpartisan organization that leverages evidence based approaches on the science of reading to evaluate teacher preparation reading instruction programs."

Delete pages 2 through 3.

Page 4, delete lines 1 through 41.

Page 11, delete lines 5 through 34, begin a new paragraph and insert:

"SECTION 8. IC 21-18-9-10.7, AS ADDED BY P.L.213-2025, SECTION 248, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2027]: Sec. 10.7. (a) For each state educational institution degree program, if the:

(1) average number of students who graduate over the immediately preceding three (3) years is fewer than:

- (A) ten (10) students for a particular associate degree program;
- (B) fifteen (15) students for a particular bachelor's degree program;
- (C) seven (7) students for a particular master's degree program;
- (D) three (3) students for a particular education specialist program; or
- (E) three (3) students for a particular doctorate degree program; and

(2) state educational institution would like to continue a degree program described in subdivision (1);

the state educational institution must request approval from the commission to continue the degree program.

(b) **Subject to subsection (c)**, if the commission does not grant



approval under subsection (a), the state educational institution must eliminate:

- (1) the degree program; and
- (2) any costs associated with the degree program.

(c) A state educational institution that has been denied approval under subsection (a) may:

- (1) permit students to enroll in the degree program until June 1 of the year following the commission's denial; and**
- (2) provide students enrolled in the degree program with the opportunity to finish their degree prior to the degree program's closure under subsection (b).**

(d) The commission shall prepare an annual report concerning the number of degree programs that were denied approval under subsection (a). The report described in this subsection must be submitted, in an electronic format under IC 5-14-6, to the general assembly not later than December 1 of each year."

Page 15, after line 12, begin a new paragraph and insert:

"SECTION 17. An emergency is declared for this act."

Renumber all SECTIONS consecutively.

and when so amended that said bill do pass and be reassigned to the Senate Committee on Appropriations.

(Reference is to SB 204 as introduced.)

RAATZ, Chairperson

Committee Vote: Yeas 9, Nays 4.

COMMITTEE REPORT

Mr. President: The Senate Committee on Appropriations, to which was referred Senate Bill No. 204, has had the same under consideration and begs leave to report the same back to the Senate with the recommendation that said bill be AMENDED as follows:

Page 12, delete lines 27 through 42.

Delete page 13.

Page 14, delete lines 1 through 14, begin a new paragraph and insert:

"SECTION 12. IC 21-33-3-5, AS AMENDED BY P.L.143-2014, SECTION 7, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 5. (a) Subject to this section, in addition to

ES 204—LS 6843/DI 143



projects authorized by the general assembly, the board of trustees of a state educational institution may engage in a project to:

- (1) construct buildings or facilities of a cost greater than ~~two~~ **three** million dollars (~~\$2,000,000~~); (**\$3,000,000**); or
- (2) purchase or lease-purchase land, buildings, or facilities the principal value of which exceeds ~~two~~ **three** million dollars (~~\$2,000,000~~); (**\$3,000,000**);

only if there are funds available for the project, the project meets any of the applicable conditions, and the project is reviewed by the commission for higher education and approved by the governor upon recommendation of the budget agency. The review by the commission for higher education must be completed not later than ninety (90) days after the project is submitted for review.

(b) If:

- (1) any part of the cost of a project described in subsection (a) is paid by state appropriated funds or by mandatory student fees assessed all students for the project; and
- (2) the project is to:
 - (A) construct new buildings or facilities of a cost greater than ~~two~~ **three** million dollars (~~\$2,000,000~~); (**\$3,000,000**); or
 - (B) purchase or lease-purchase land, buildings, or facilities the principal value of which exceeds ~~two~~ **three** million dollars (~~\$2,000,000~~); (**\$3,000,000**);

the project must also be approved by the general assembly.

(c) This section does not limit the board of trustees in supplementing a project approved by the general assembly from gifts or other available funds so long as approval for the expansion of the project is given by the governor on review by the commission for higher education and recommendation of the budget agency.

(d) The review and approval requirements of this section do not apply to a project to:

- (1) construct buildings or facilities; or
- (2) purchase or lease-purchase land, buildings, or facilities;

if the project involves the expansion or improvement of housing for students undertaken entirely by a fraternity or sorority at the state educational institution.

SECTION 13. IC 21-33-3-6, AS AMENDED BY P.L.143-2014, SECTION 8, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 6. (a) Subject to subsection (b), in addition to projects authorized by the general assembly, the board of trustees of a state educational institution may engage in a repair and rehabilitation project for which:



(1) the cost of the project exceeds ~~two~~ **three** million dollars ~~(\$2,000,000); (\$3,000,000);~~ and

(2) any part of the cost of the project is paid by state appropriated funds or by mandatory student fees assessed all students for the project;

only if the project is reviewed by the commission for higher education and approved by the governor, on recommendation of the budget agency. The review by the commission for higher education must be completed not later than ninety (90) days after the project is submitted for review.

(b) If no part of the cost of a repair and rehabilitation project is paid by state appropriated funds or by mandatory student fees assessed all students for the project, the review and approval requirements of this section apply only if the project exceeds ~~two~~ **three** million dollars ~~(\$2,000,000); (\$3,000,000).~~

SECTION 14. IC 21-33-3-11 IS ADDED TO THE INDIANA CODE AS A **NEW** SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 11. Each state educational institution shall submit a report by April 1 of each year to the budget committee and the commission for higher education listing each capital project of the state educational institution for the immediately preceding full calendar year:**

(1) the cost of which is between two million dollars (\$2,000,000) and three millions dollars (\$3,000,000); and

(2) that did not receive review by the commission for higher education under this chapter.

The report shall include for each capital project the location, cost, and funding source or sources of the capital project as well as any additional information required by the commission for higher education."

Renumber all SECTIONS consecutively.

and when so amended that said bill do pass.

(Reference is to SB 204 as printed January 16, 2026.)

GARTEN, Chairperson

Committee Vote: Yeas 10, Nays 1.

ES 204—LS 6843/DI 143



COMMITTEE REPORT

Mr. Speaker: Your Committee on Education, to which was referred Senate Bill 204, has had the same under consideration and begs leave to report the same back to the House with the recommendation that said bill be amended as follows:

Replace the effective date in SECTION 4 with "[EFFECTIVE JULY 1, 2027]".

Page 1, delete lines 1 through 15.

Delete pages 2 through 3.

Page 4, delete lines 1 through 36.

Page 5, delete lines 13 through 18, begin a new paragraph and insert:

"(c) Subject to subsection (d), if an individual described in subsection (a) demonstrates effectiveness as a teacher, as determined by the applicable charter school leader, for not less than two (2) consecutive years, the individual shall be eligible to obtain an initial practitioner professional educator license for the content area in which the individual has taught."

Page 5, line 19, after "practitioner" insert "professional educator".

Page 5, line 24, after "practitioner" insert "professional educator".

Page 5, line 29, delete "The" and insert **"Except as provided in subsection (c), the"**.

Page 6, line 6, after "(v)" insert **"if applicable,"**.

Page 7, between lines 7 and 8, begin a new paragraph and insert:

"(c) The department may not grant an initial practitioner license under this section to teach special education."

Page 7, line 8, strike "(c)" and insert **"(d)"**.

Page 11, delete lines 36 through 42.

Page 12, delete lines 1 through 10.

Page 14, delete lines 28 through 42, begin a new paragraph and insert:

"SECTION 14. IC 21-42-5-4, AS AMENDED BY P.L.120-2013, SECTION 5, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 4. The core transfer library shall be developed in accordance with the following principles:

- (1) Each course in the core transfer library must transfer in and apply toward meeting degree requirements in the same way as the receiving state educational institution's equivalent course.
- (2) Courses in the core transfer library must draw from the liberal arts and introductory or foundational courses in technical, professional, and occupational fields that are part of the single



articulation pathways established under IC 21-42-6-4.

(3) At least seventy (70) courses must be identified for inclusion in the core transfer library. The identified courses must emphasize the courses most frequently taken by undergraduates.

(4) With respect to core transfer library courses being transferred from a state educational institution to Indiana University or Purdue University, Indiana University and Purdue University must identify transfer equivalents so that a course accepted by one (1) regional campus is accepted by all other regional campuses that offer the same transfer equivalent course.

(5) Within the Indiana University system and Purdue University system, equivalent courses, including courses with the same course number and title, must count in the same way at all campuses within the system where the course is offered.

(6) A state educational institution shall award course credit for a satisfactory score (as defined in IC 20-36-1-4) on an advanced placement examination in which the advanced placement examination corresponds to the state educational institution's course in the core transfer library.

(7) With respect to course credit awarded by a state educational institution for a satisfactory score (as defined in IC 20-36-1-4) on an advanced placement examination that corresponds to the state educational institution's course on the core transfer library, a receiving state educational institution must transfer and apply course credit in alignment with the receiving state educational institution's corresponding course in the core transfer library or as elective credit if no corresponding course is offered in the core transfer library.

SECTION 15. IC 21-44-8 IS ADDED TO THE INDIANA CODE AS A NEW CHAPTER TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]:

Chapter 8. Health Profession Education Program

Sec. 1. This chapter does not apply to a contract entered into or renewed before July 1, 2026.

Sec. 2. As used in this chapter, "health profession education program" means an education program that:

- (1) is designed to prepare a student for a career in a health profession regulated by an entity described in IC 25-0.5-11; and**
- (2) requires a student to complete clinical training or clinical experience at an offsite facility.**

Sec. 3. As used in this chapter, "immunization" means the



treatment of an individual with a vaccine to produce immunity.

Sec. 4. As used in this chapter, "student" means a student enrolled in a health profession education program.

Sec. 5. A student may not be required to receive an immunization as a condition of:

(1) participating in; or

(2) obtaining;

clinical training or clinical experience required by a health profession education program if a parent of the student, if the student is an unemancipated minor, or a student, if the student is an adult or emancipated minor, objects on religious grounds."

Page 15, delete lines 1 through 11.

Renumber all SECTIONS consecutively.

and when so amended that said bill do pass.

(Reference is to SB 204 as printed January 23, 2026.)

BEHNING

Committee Vote: yeas 8, nays 4.

